

Philosophy of Law and Morals: A Rabbit Hole

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Happiness is the final end all for all human life. If this is the case, then we need laws which coincide with this, but before we can do that, how do we define law? This rabbit hole is one well understood by Thomas Aquinas. He subscribed to the idea that law is a binding force which binds a person to act. If this is the case, then we must begin by defining important concepts, and then interweave them into the nature of what law is and how we are bound by it. Therefore, Thomas Aquinas' rabbit hole of a question is one we will embark on together.

First let's define terms. The first term we'll discuss is Law. The etymology of law (lex) comes from ligare (to bind) meaning to bind one to act. For instance, Aquinas defines law as "a rule and measure of acts, whereby man is induced to act or is restrained from acting" (PL, 12). The "rule and measure facts" he is referring to here is reason because reason is what puts action into motion. Therefore, reason is what binds us to act.

Moreover, if that's the case, then let's define reason. According to Aquinas reason is the first principle of human acts and has the power to will a command into motion. For instance, he writes "Reason has its power of moving from the will, ... for it is due to the fact that one wills the end, that the reason issues its commands as regards things ordained to the end" (PL, 12). Meaning that if a will is made, reason is the force which puts it into action. Therefore, according to Aquinas, reason is the first and main cause for any and every action and what binds us to act.

Well, why do we generally act? Surely, whatever it is that makes us act has to be an accordance with some rule of reason, but what is it? Aristotle and Aquinas would say its happiness, also known as the final good. For instance, Aquinas writes, "the first principle in practical matters, which are the object of the practical reason, is the last end: and the last end of human life is happiness or beatitude" (PL,12). Therefore, all human action is an action which gets us closer to happiness.

Secondly, if this is the case, then we have a micro and macro level of happiness. On a micro level

it would be the happiness of an individual, but on a macro level it would be the happiness of the whole community. For law, we want to look at the happiness of the macro because “since every part is ordained to the whole as the imperfect to the perfect, and since one man is a part of the perfect community” (PL 12). Every person’s happiness has to be considered thus making it a universal happiness. Therefore, law binds a person to act in the interest of a universal happiness for the collective community.

Furthermore, if law is binding a person to act in the best interest of the community’s universal happiness, then we can say law is for the common good. For instance, we can now make the claim that “since law is chiefly ordained to the common good, any other precept in regard to some individual work must . . . be devoid of the nature of law, save in so far as it regards the common good” (PL12). If an individual’s acts are for the common good, then it is in accordance with law. Therefore, the nature of law is law which entails the common good.

Now, the nature of law is that which binds our actions to the common good. For instance, it is stated as “Just as nothing stands firm with regard to the speculative reason except that which is traced back to the first indemonstrable principles, so nothing stands firm with regard to the practical reason, unless it be directed to the last end which is the common good” (PL 12). In other words, human’s reasoning to take action is in accordance with the final good and the final good is in accordance with the common good and the common good entails law. Therefore, we can now say that any reasonable action should entail the nature of law.

Thirdly this raises the question about what it means if an action is not in accordance with the nature of law. In other words, what if someone breaks the law? Then the law should have a coercive power which holds up an effective law. But where does this power come from? Aquinas claimed that, “this coercive power vested in the whole people or in some public personage, to whom it belongs to inflict penalties . . . Therefore the framing of laws belongs to him alone” (PL 12). Meaning, that the coercive power is given to a group

of people like the government to inflict penalties if the law is broken. Therefore, if a person breaks the law, the coercive power inflicts penalties making it a binding force.

But now, how do we know this coercive power has the ability to inflict penalties should the law be broken? Simple, we will implement a rule or measure. For instance, “a rule or measure is imposed by being applied to those who are ruled and measure by it. Therefore, in order that a law obtain the binding force which is proper to law, it must... be applied to men who have to be rule by it.” (PL 12-13). Meaning, that those who agree to be ruled by law agree to be considered in the measure of what law can rule. Therefore, everyman who is agrees to be within the measure of law, agrees that if their actions are unlawful, the coercive power can inflict punishment because of the binding force.

However, for this rule to work, we need to make widely known the rules in which people are being ruled by. In other words, laws need to be promulgated for law to obtain its binding force. But how is it promulgated? Aquinas’ answer is “the promulgation that takes place in the present extends to the future time by reason of the durability of written characters, by which means it is continually promulgated” (PL 13). In other words, law is promulgated by the written law and its reason. If the law is no longer reasonable, it will change, and that new law will be promulgated through written language.

Overall it is clear that Aquinas defines law as a binding action driven by reason. The reasons to act are for the happiness of oneself and the collective. Therefore, law must be for the common good making it natural law. A coercive power must be the binding force for people to act according to law and this coercive power can inflict punishment if not. But first, it must promulgate the law. Now, we have crawled right out of the rabbit hole for what law is.